

## 25STCV19452 25STCV19452

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-09-28

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C307%2C09%2F28%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C09%2F28%2F2026)

Source SHA-256: 9faa32029de5abd3b7551920e97f11cb3bc4813e82ce83aedc0b11b2ea5a8dfe

Case Number: 25STCV19452 Hearing Date: September 28, 2026 Dept: 307

# 14 TENTATIVE RULING 9:00 a.m., Monday, Sept. 28, 2026

ERIN

NYHAN, et al. v. FORD MOTOR COMPANY, et al. [25STCV19452]

DEFENDANT

FORD MOTOR COMPANY'S DEMURRER TO THE SECOND AMENDED COMPLAINT

MEET AND

CONFER: DEFECTIVE Ford's

counsel declares that he attempted to meet and confer on at least three dates,

but Plaintiffs' counsel did not respond. (Liu Decl., ¶ 3.)

BACKGROUND:

Lemon law action

TIMELINE:

6/1/2019: Plaintiffs Erin M. Nyhan and Damon W.

Nyhan ("Plaintiffs") lease a 2019 Ford Explorer (the "Vehicle"), which was

manufactured and/or distributed by Defendant Ford Motor Company ("Ford"), from non-party Future Ford. (SAC, Exh. A.) In connection with the lease, Plaintiffs enter into a warranty contract with Ford regarding the Vehicle. Thereafter, Plaintiffs experience defects and non-conformities in the Vehicle, including a lack of power at freeway speeds, sluggishness, hesitation on acceleration, check engine light(s), harsh shifts, and an abnormal clunking noise (the "Defects").

6/10/2021: Plaintiffs present the Vehicle to Ford's<sup>[1]</sup> repair facility with complaints regarding an abnormal clunking noise and a check engine light. At pick up the following day, the repair facility represented that the Vehicle had been repaired.

6/29/2021: Plaintiffs present the Vehicle to Ford's repair facility with complaints regarding harsh shifting. At pick up the following day, the repair facility represents that the Vehicle had been repaired.

3/2/2022: Plaintiffs present the Vehicle to Ford's repair facility with complaints regarding shuddering and the tailgate failing to properly open. At pick up on March 22, 2022, the repair facility represented that the Vehicle had been repaired.

3/29/2022: Plaintiffs present the Vehicle to Ford's

repair facility with complaints regarding the driver door keypad, damaged

weather stripping, and a recall performance. At pick up on May 9, 2022, the

repair facility represented that the Vehicle had been repaired.

2/13/2024: Plaintiffs present the Vehicle to Ford's

repair facility with complaints regarding multiple warning lights and

acceleration issues. At pick up the following day, the repair facility

represented that the Vehicle had been repaired.

6/30/2025: Plaintiffs file the Complaint. Plaintiffs

filed a First Amended Complaint ("FAC") on 8/20/2025.[2] The

operative Second Amended Complaint ("SAC"), filed 8/10/2026, alleges causes of

action for:

1.

1.

Violation

of Civil Code § 1793.2, subd. (d) 2.

2.

Violation

of Civil Code § 1793.2, subd. (b) 3.

3.

Violation

of Civil Code § 1793.2, subd. (a)(3)¿

4.

Fraudulent

Inducement-Concealment¿

8/19/2026: Ford files this Demurrer to the SAC,

which is followed by Plaintiffs' Opposition (9/14/2026) and Ford's Reply (9/17/2026).

TENTATIVE

RULING: DEFENDANT FORD MOTOR COMPANY'S DEMURRER TO THE SECOND AMENDED COMPLAINT

is OVERRULED in part and SUSTAINED with LEAVE TO AMEND in part.

DEMURRER

Ford

demurs to each cause of action asserted in the SAC on the grounds that

Plaintiffs fail to allege sufficient facts to state any cause of action against

Ford.

A.

1st

through 3rd Causes of Action: Song-Beverly Act Claims — OVERRULED

Ford

argues Plaintiffs' claims for violations of the Song-Beverly Act ("SBA") are

time barred by the six-year statute of repose under Code of Civil Procedure section

871.21, subd. (b).[3] Under this

statute of repose, “an action covered by Section 871.20 shall not be brought

later than six years after the date of original delivery of the motor vehicle.”

(Code Civ. Proc., § 871.21, subd. (b).) It is ruling on Ford’s motion for

judgment on the pleadings as to the FAC, this Court previously determined that

each of Plaintiffs’ SBA claims are enumerated under section 871.20, and are

therefore governed by section 871.21, subd. (b). (Minute Order, 7/29/2026.) The

Court incorporates by reference its previous analysis by reference herein. (Ibid.)

Accordingly, Plaintiffs’ three SBA claims must have been brought within six

years “after the date of original delivery of the motor vehicle,” or otherwise

demonstrate that a tolling exception to the repose period applies. (Code Civ.

Proc., § 871.21, subds. (b)-(c).)

Here,

Plaintiffs allege they executed their warranty contract with Ford for their

Vehicle on or about June 1, 2019. (FAC, ¶ 7.) Although Plaintiffs still fail to

specifically identify when the Vehicle was delivered to them, it can be

inferred that the Vehicle was delivered on or around the same date as the

warranty contract. (Ibid.) Thus, absent tolling, the six-year deadline

to file the instant SBA claims would have expired on June 1, 2025.

Nevertheless, Plaintiffs did not file the Complaint in the instant lawsuit

until June 30, 2025, 29 days after the expiration of the six-year repose

period. (See Compl., generally.)

Notwithstanding,

section 871.21, subd. (c) provides limited tolling exceptions to the section

871.21, subd. (b) statute of repose, including that the six-year repose period

“shall be tolled” “[f]or the time the motor vehicle is out of service by reason

of repair for any nonconformity.” (Code Civ. Proc., § 871.21, subd. (c)(2).) In

the SAC, Plaintiffs have now added factual allegations clarifying that the

Vehicle was under repair with Ford’s authorized repair facilities on at least

five occasions between 2021 and 2024, totaling a combined period of more than

two months during which the Vehicle was out of service. (FAC, ¶¶ 20-24.) Assuming

the truth of these allegations, the Court finds that, for pleading purposes,

Plaintiffs have now alleged sufficient facts to show that the exception under

section 871.21, subd. (c)(2) applies to extend the repose period past the

filing date of June 30, 2025. Contrary to Ford’s argument, the Court disagrees

that Plaintiffs must expressly invoke the exception under section 871.21, subd.

(c)(2) or calculate the total number of days the Vehicle was out of service to

successfully invoke this exception here. The SAC contains sufficient facts to

reach these inferences and to give notice of the application of this tolling

exception, as Ford itself highlights by responding to the exception in its

motion. (Mot., at p. 12.)

Accordingly,

based on the application of the tolling exception under section 871.21, subd.

(c)(2), the Court finds that Plaintiffs' SBA claims are not necessarily

time-barred under section 871.21, subd. (b). Therefore, Ford's demurrer to the

first through third causes of action in the SAC is OVERRULED.

B.

4th

Cause of Action: Fraudulent Inducement-Concealment — SUSTAINED with LEAVE TO AMEND

Ford

argues that Plaintiffs fails to state a claim for fraudulent

inducement-concealment[4]

because: (1) it is barred by the three-year statute of limitations, (2) it

fails to sufficiently plead the essential elements of fraud with the requisite

level of particularity, and (3) it is barred by the economic loss rule and

independent tort principle.

i.

Statute

of Limitations

The

newly added factual allegations in the SAC suggest that Plaintiffs' fraud claim is not necessarily time barred. The three-year limitations period for fraud does not begin to run until the aggrieved party suspects or should suspect that her injury is caused by wrongdoing. (Code Civ. Proc. § 338, subd. (d); Brandon G. v. Gray (2003) 111 Cal.App.4th 29, 35.) To invoke the delayed discovery rule as a basis for tolling, "the complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it or had no actual or presumptive knowledge of facts sufficient to put him on inquiry." (Community Cause v. Boatwright (1981) 124 Cal.App.3d 888, 899; see Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803.)

Here,

Plaintiffs now allege that they presented the Vehicle for repairs through at least February 13, 2024, and on each occasion, Ford's repair facility represented that the Vehicle had been repaired and was working as designed.

(FAC, ¶¶ 20-24.) Plaintiffs allege that they did not discover Ford's concealment and wrongful conduct until after this time, despite diligence in performing regular maintenance and seeking repairs. (Id. ¶¶ 25-27.) In can reasonably be inferred that Ford's repair facilities' representations regarding the Vehicle created a delay in Plaintiffs' ability to discover Ford's

purported fraud. Assuming the truth of Plaintiffs' allegations that they did not discover and did not have reason to discover Ford's alleged fraud until on or after February 13, 2024, the Court finds that Plaintiffs' fraud claim did not accrue for limitations purposes until February 13, 2024. Plaintiffs filed their Complaint in this action on June 30, 2025, well before the expiration of the three-year limitations period under Code of Civil Procedure section 338, subd. (d).

ii.

Heightened

Pleading Standard

Notwithstanding

the above, the Court finds that Plaintiffs still fail to allege the elements of fraudulent inducement-concealment with the requisite level of specificity for pleading fraud claims. Fraud, including concealment, must be pled specifically, and "general and conclusory allegations do not suffice." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) "California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43.) Additionally, "[t]he

requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Here,

Plaintiffs allege that Ford committed fraud by concealing the Vehicle’s Defects and their associated safety risks from Plaintiffs at the time of the sale, repair, and thereafter. (FAC, ¶¶ 76-79, 81, 83.) Not only did Ford never disclose the Defects to Plaintiffs before or during their ownership of the Vehicle, but Ford also failed to instruct its dealerships to disclose the Defects to potential purchasers or lessees and failed to notify consumers, dealerships, or auto-technicians of the Defects, thereby preventing efficient diagnosis and repair. (Id. ¶¶ 92, 94.) Meanwhile, Ford continues to represent that its vehicles were of “high quality” and trained its dealers to “specifically tout the supposedly superior attributes of the 3.5L engine, without ever mentioning” the Defects. (Id. ¶ 96.)

The

issue with these allegations is that Plaintiffs still fail to clarify the source of the specific false representations and omissions made by or on behalf

of Ford during either the sale and/or service transactions with Plaintiffs in particular or with respect to Plaintiffs' specific Vehicle. While Plaintiffs now identify where they leased the Vehicle (i.e. Future Ford of Concord), Plaintiffs have still not alleged sufficient factual details describing the nature or extent of the specific sales interactions between Ford and Plaintiffs, such as whether and when Plaintiffs spoke to Ford's sales representatives, the names or positions of any such representatives (whether at Future Ford or elsewhere), or personally reviewed other sources of information about their specific Vehicle. (SAC, ¶ 9.) Plaintiffs vaguely allege that Ford authorized Future Ford to "convey information from Ford to prospective purchasers (including Plaintiffs) using methods that Ford directs such as marketing brochures and floor displays" but they do not specifically describe the content of the information conveyed to Plaintiffs by Future Ford in particular. (Id. ¶ 10.) At most, Plaintiffs allege that they viewed "Ford's vehicle-specific window sticker" and submit a photograph of the vehicle-specific window sticker which describes the 3.5L engine, but Plaintiffs do not explain what should have been disclosed on the window-sticker or what representations Ford's representatives made about the scope of the information presented in the window-sticker. (Id. ¶¶ 11, 15.) Likewise, while Plaintiffs highlight Ford's website and Ford's "television, print, and other

media advertisements,” and vaguely allege that Plaintiffs “reviewed Defendant Ford’s marketing and advertising materials,” Plaintiffs fail to specifically connect these materials to Plaintiffs by alleging, for example, that Plaintiffs personally reviewed the information on Ford’s website or identifying which specific types of advertising materials Plaintiffs personally consulted, when they reviewed such materials, and whether the advertisements discussed the specific Vehicle model sought by Plaintiffs. (Id. ¶¶ 12-15.) Finally, although Plaintiffs have now identified the dates on which they presented their Vehicle for repairs, they have not identified the specific names of the authorized repair facilities, the names of specific repair technicians acting on behalf of Ford, or the scope of the repair facilities’ authority to make representations on behalf of Ford.

Overall,

while the SAC reflects significant improvement in the level of factual specificity compared to the FAC, more factual details describing the specific interactions between Ford and Plaintiffs (as opposed to the public at large) are necessary to overcome the heightened pleading requirement for fraud. The SAC still fails to allege the names and/or positions of Ford’s sales and repair representatives, what Plaintiffs were specifically told by the sales representatives (if any) about the Vehicle and when, whether and when they

personally reviewed Ford's website, the types of marketing materials Plaintiffs personally consulted and when, etc. Because Plaintiffs appear to be alleging both that Ford's representatives fraudulently concealed information about the Vehicle and also made affirmative misrepresentations about the Defects, more facts must be pled to distinguish the source, content, and scope of the fraudulent misrepresentations, as compared to the fraudulent omissions so that Ford can reasonably identify the specific nature of the fraud at issue.

Therefore,

Plaintiffs' fourth cause of action for fraud is insufficiently pled.

iii.

Economic

Loss Rule

In its

prior ruling on Ford's motion for judgment on the pleadings, the Court concluded that Plaintiffs' fraud claim is not necessarily barred by the economic loss rule. The Court adopts its prior analysis with respect to the economic loss rule. (See Minute Order, 7/29/2026.)

Therefore,

Ford's demurrer to Plaintiffs' fourth cause of action for fraud is SUSTAINED with LEAVE TO AMEND.

Defendant

Ford Motor Company to serve notice of ruling. This tentative ruling ("TR")

shall be the order of the Court unless changed at the hearing and shall by this

reference be incorporated into the Minute Order.

TR

emailed to counsel and posted to court website on 9/24/26 at 2 p.m.

[1] Plaintiffs repeatedly allege that

they presented the Vehicle to "Defendant FCA's authorized repair facility" and

reference "FCA" in Paragraphs 20-25 and 27 of the SAC. As Ford (not FCA) is the

defendant in this action, the Court presumes that the references to FCA are a

typographical error intending to refer to Ford and construes the SAC

accordingly.

[2] On 7/29/2026, the Court granted

Defendants' motion for judgment on the pleadings as to the FAC in its entirety,

with leave to amend.

[3] Hereinafter, references to

sections with an unspecified Code are referring to the Code of Civil Procedure.

[4] "As with all fraud claims, the necessary elements

of a concealment/suppression claim consist of '(1) misrepresentation (false

representation, concealment, or nondisclosure); (2) knowledge of falsity

(scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable

reliance; and (5) resulting damage.” [Citation.]” (Dhital v.

Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843 (Dhital).) “Suppression

of a material fact is actionable when there is a duty of disclosure, which may

arise from a relationship between the parties, such as a

buyer-seller relationship.” (Id. at

pp. 843-844.)